INTERNATIONAL LAW

Even before the emergence of the sovereign states as major political units in the Westphalian sense, sovereign political units had always felt the need to regulate their relations with other states by adopting rules and institutions, thus, enabling them to conduct their relations, in a peaceful manner, abhorring the path of war and violence.

The modern system of international law is mainly a product of the customs, usages and practices of modern European states and have been greatly influenced by the writings of the jurists of the sixteenth, seventeenth and eighteenth centuries. These customs and practices in the course of time have developed and some were even codified and have gradually come to constitute the body of International Law. However, we may note that treaties, usages of war, immunities for diplomatic personnel, and other customary laws were prevalent in ancient India, China and Egypt for many centuries before the advent of Christianity.

Hugo Grotius (1583–1645) is regarded as the “Father of International Law”. His *De jure belli ac pacis* (*On the Law of War and Peace*), published in 1625, codified international law as it had developed up to that time. Later, various attempts were made by the jurists to codify international law. In 1863, Francis Lieber (1800–1872) prepared *A Code for the Government of Armies* used during the Franco–Prussian War. In 1868 Bluntschli (1808–1872) made a more comprehensive attempt towards codification. In 1872, David Dudley Field (1805–1894) issued a *Draft Outline of an International Code*. An Italian jurist, Pasquale Fiore (1837–1914) published in 1899 a code covering various fields of international law.[1]

Besides, individual attempts by jurists, several institutes also contributed sufficiently towards the codification of international law. The prominent among them is the *Institut de Droit International* (founded in 1873) and the Association for the Reform and Codification of the Law of Nations, which in 1895 changed its name to International Law Association. The American Institute of International Law also made notable contributions. Codification attempts were also made under the auspices of the League of